

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL
(EUROPE) LIMITED., *Respondents and Third-Party
Complainants*

v.

SAMSUNG ELECTRONICS COMPANY, LTD., *Third-Party
Respondent.*

DOCKET NO. 24-17

Served: January 29, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge.*

**ORDER GRANTING IN PART AND DENYING IN PART RESPONDENT’S EMERGENCY MOTION TO
STRIKE AND FOR ADDITIONAL RELIEF**

On January 27, 2026, Orient Overseas Container Line Limited and OOCL (Europe) Limited (“OOCL”) filed Respondent’s Emergency Motion to Strike and for Additional Relief (“Motion to Strike”).

On January 23, 2026, Complainant Samsung Electronics America, Inc. (“SEA”) filed SEA’s Motion to Compel Discovery (“SEA’s MTC”). Though SEA’s MTC itself is 10 pages, it includes an appendix that is over 40 pages. OOCL argues in its Motion to Strike that SEA’s MTC should be stricken *in toto* for exceeding the page limit for non-dispositive motions of 10 pages (*see* 46 C.F.R. § 502.71(d)). OOCL also argues in its Motion to Strike that it should have additional time to respond to SEA’s MTC should I decide to not strike the motion to compel *in toto*. Finally, OOCL asks for more than 10 pages, that is, up to an additional 45 pages, to reply to SEA’s MTC. OOCL represents that Complainant consents to allowing OOCL to have more than 10 pages to reply, but otherwise opposes the Motion to Strike.

Also on January 27, 2026, I issued an Order Reducing Time to Respond to Respondent’s Emergency Motion to Strike and for Additional Relief (the “January 27 Order”). In the January 27 Order, I required SEA to file its response to the Motion to Strike no later than January 28, 2026.

On January 28, 2026, SEA filed SEA's Opposition to OOCL's Emergency Motion to Strike. In it, SEA argued that SEA's MTC complied with the Commission's filing requirements, including the requirement in the Initial Order that any motion to compel set forth verbatim the interrogatory or request, as well as the response. SEA also argues that OOCL has been aware for some time of the discovery requests at issue, and thus an extension of time to respond is not warranted. Finally, SEA agreed to a page extension.

The Motion to Strike is **DENIED IN PART** to the extent that I will not strike SEA's MTC *in toto*. I appreciate OOCL's concerns. In general, non-dispositive motions are limited to 10 pages. (46 C.F.R. § 502.71(d)). Although SEA's motion itself is 10 pages, the appendices contain several pages-worth of argument. In other words, SEA's motion exceeds 10 pages of argument. SEA, however, did not seek leave to file a motion to compel greater than 10 pages.

I also appreciate SEA's point, however, that motions to compel generally require the verbatim interrogatory and answer, or document request and response, and a description of how each answer or response is allegedly deficient. (*See* Initial Order, at 3). Accordingly, SEA's MTC could not have practically fit within 10 pages.

Rather than strike SEA's MTC *in toto*, I will allow OOCL to have the opportunity to respond. Accordingly, the Motion to Strike is **GRANTED IN PART** to the extent that OOCL requests an extension of an additional 45 pages to respond to SEA's MTC (though OOCL is not obligated to use all available pages).

In addition, the Motion to Strike is **GRANTED IN PART** to the extent that OOCL requests an additional seven days from the date of this Order, or until February 5, 2026, to respond to SEA's MTC. The parties are strongly encouraged to use the additional time granted in order to reach an agreement regarding some of the outstanding discovery issues related to both SEA's MTC, as well as OOCL's motion to compel.

Accordingly, it is **HEREBY ORDERED** that the Motion to Strike is **DENIED IN PART** to the extent that OOCL requests that SEA's MTC be stricken *in toto*. It is

FURTHER ORDERED that the Motion to Strike is **GRANTED IN PART** to the extent that OOCL seeks an additional 45 pages to respond to SEA's MTC. It is

FURTHER ORDERED that the Motion to Strike is **GRANTED IN PART** to the extent that OOCL seeks an extension of seven days from the date of this Order to respond to SEA's MTC. OOCL may respond to SEA's MTC no later than **February 5, 2026**.

Richard C. Ambrow Jr -S

Richard Ambrow
Administrative Law Judge